

KMVTECH EDUCATION

HRL1 · Module 1

Concepts of human rights

Lesson: What are human rights?

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Human rights are entitlements inherent in every person by virtue of humanity. They are universal, inalienable, interdependent and indivisible. Modern catalogues rest on the Universal Declaration of Human Rights (1948), the two Covenants (ICCPR and ICESCR 1966) and regional instruments.

Civil and political rights (first generation) and economic, social and cultural rights (second generation) are complementary. Collective and solidarity rights (third generation) remain contested in content and justiciability.

Duties correlate with rights: States have obligations to respect, protect and fulfil. Individuals and non-State actors also bear responsibilities under some instruments.

- Universality coexists with cultural diversity; the African Charter emphasises peoples' rights and individual duties alongside classic rights.

2. DETAILED RULES AND APPLICATION

Example: the right to life underpins prohibitions on arbitrary killing and also informs positive duties to investigate and prevent.

Always classify the right (CP or ESC), identify the duty-bearer, and state the level of obligation (respect / protect / fulfil).

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's 1995 Constitution Chapter Four (Bill of Rights) is the primary domestic catalogue. International instruments ratified by Uganda inform interpretation and, where domesticated, direct application.

Exam trap: treating economic and social rights as purely aspirational and non-justiciable without examining the Constitution and case law.

Method: name the right → locate it in Constitution / treaty → identify corresponding duties → apply to facts → note any limitation clause.

This conceptual foundation supports every later module on systems, limitations and enforcement.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What are the three levels of State obligation?
2. Distinguish first- and second-generation rights.
3. Why are rights described as interdependent?
4. What distinctive features does the African Charter add?
5. Where is Uganda's Bill of Rights found?
6. What is the first analytical step when a right is claimed?

Exam tip: Classify right, duty-bearer and obligation level.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.